Transport Planning, Development & Streetworks Management
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Transport Development Management

Memo

To: Planning Services
From: Transport Development Management
Date: 25th April 2022

Application Number: S/COND/22/0483

Proposal: Discharge of condition 26 (Thornhill Road Junction) and partial discharge of conditions 36 (Construction Method Statement), 37 (Construction and Environmental Management Plan), 13 (Tree Protection), 17 (Bats), 53 (Slab Levels) and 54 (Materials) from previous outline permission S/OUT/13/1555.

Location: Land North Of A420 Eastern Villages Swindon

Ed,

I refer to the above condition compliance application.

Condition 26: Thornhill Road Junction

Notwithstanding the submitted details, prior to the occupation of any dwelling, detailed design of access proposals in broad compliance with drawing number 1335/HL/56 F (submitted to LPA on 13th October 2017), for the development onto Thornhill Road will be submitted to and approved in writing by the Local Planning Authority. The access proposals will be supported by Stage 2 Road Safety Audit and Walking, Cycling and Horse Riding Assessment and Review and will directly consider the vehicle and pedestrian access requirements of adjacent properties, including turning of vehicles and road crossing, through both construction phase and operational phase. The access proposals will be completed in all respects prior to the occupation of the 300 dwelling, in accordance with the approved plans and maintained as such thereafter to serve the development.
Reason: To ensure safe and sufficient access proposals are provided through construction and operational phases of development, to consider existing highway users, development occupiers and adjacent residents in interests of highway safety and in compliance with Local Plan Policy TR1 and TR2.

The information submitted is not sufficient to comply with this condition.
I have been unable to locate a Stage 2 Road Safety Audit.
The design speed does not appear to have been clarified, the design appears more suitable for a 30mph posted speed limit, not the current national speed limit (60mph). Was this discussed or included within the Outline application?
The northbound and southbound visibility splays appear to go through existing hedging.
No visibility splays appear to have been shown for the development access road.
No Swept Paths of the junction appear to have been included.
Gullies seem to be absent on a large part of the roundabout.
None of the drawings include the access to Priory Lodge.
Appendix C of the WCHAR does not correctly identify the access to Priory Lodge, therefore the conclusions are not accepted. The Swept Paths are not illustrated with the correct access to Priory Lodge, no turning facilities for Priory Lodge are indicated, but the Swept Paths show an access and an egress movement from the same position.
Visibility splays between the existing access to Priory Lodge and the circulatory lane of the proposed roundabout are absent. Once illustrated, it is likely that there will be limited visibility.

Land Transfer was discussed previously, this would assist with a number of issues, and should also be considered to provide a link to a potential crossing point to the south of the roundabout to link with the PRoW.
Footways are shown on both the north and south side of the roundabout, but only one side of the access road is proposed with a footway. There is no need to provide footways where there is no meaningful purpose to them, the applicant needs to ensure that footways shown have meaningful purpose.
This is not necessarily an exhaustive list. Discharge of this condition should run concurrently with the S278 application for the works under the Highways Act. If the outline planning application did not include a reduction in speed limit along this section of Thornhill Road, an informal and then formal consultation process for the TRO will need to take place. This can only be done as part of the S278 process and with the correct information.

Condition 36: Construction Method Statement

Prior to the commencement of works of any development on any sub-phase hereby permitted, including site clearance, a Construction Method Statement for that sub-phase of development shall be submitted to and approved in writing by the Local Planning Authority. Once agreed, such mitigation measures approved prior to the commencement of construction shall be implemented prior to the commencement of any construction on the sub-phase and shall be adhered to throughout the construction period of that phase.
The Construction Method Statement shall provide:

i. details of the number and frequency of construction vehicle movements and contact details for site manager; Details of the number and frequency of construction vehicles have been included at Section 2.3.1 of the CEMPMS, but no details of the Site Manager have been forthcoming. Contact details of a responsible officer can be given until details of the Site Manager are available. Until such details are provided, this part of the condition cannot be complied with.
ii. secure vehicle logs, including registrations and time of arrival/departure; A blank Vehicle Log has been included within the CEMPMS with a commitment that it will be completed by the Site Manager and submitted to SBC. The information is sufficient to comply with this part of the condition.

iii. for the loading, unloading and storage of plant and materials, including swept paths of vehicle movements within the site; No information appears to have been submitted to comply with this part of the condition.

iv. a device for removing debris from the highway to ensure the highway is clear at all times and is on 24 hour call out (excluding those days where construction is not permitted); A manned jet wash wheel wash facility is proposed at the site egress is proposed, but no details of where the muddy water will run too appear to have been included. Section 2.2.4 of the CEMPMS states that the Site Manager will monitor site roads and Thornhill Road and arrange road sweeps when necessary. The section continues that the public will be able to report mud on the road 24 hours a day, via a phone number displayed on a site board, this is not what this part of the condition requires. The details submitted are not sufficient to comply with this part of the condition.

v. construction vehicle routes to and from and within the site with distance details; Routes to the site from east and west have been specified, routes within the site and distance details have not been included. The information submitted is not sufficient to comply with this part of the condition.

vi. temporary access details and parking area for site operatives and construction traffic, parking of vehicles of site operatives and visitors; A 15 space car park is proposed for contractors, where 30 contractors are expected to be on site, this is a low level of parking that is likely to result in parking issues on site that may overspill onto the local road network. This is not an acceptable level of contractor parking provision. Contractors bring tools and need easy access to their vans for their tools, whilst some contractors will be able to share vehicles and tools, a parking ratio of 50% is considered insufficient. The information submitted is insufficient to comply with this condition.

vii. location and details of buildings, enclosures and staff facilities; No information appears to have been submitted to comply with this part of the condition.

viii. specific measures to be adopted to mitigate construction impacts (including infrastructure improvements if appropriate); No information appears to have been submitted to comply with this part of the condition.

ix. details of a procedure for wheel washing and/or vehicle wash down of all site construction traffic leaving any of the construction sites; As above, a manned jet wash wheel wash facility is proposed at the site egress is proposed, but no details of where the muddy water will run too appear to have been included. Given the total build for this site, the developer is advised to invest in a jetted wheel bath to provide for all the South Marston phases of development and another jetted wheel bath to provide for the Rowborough phases of development. Jetted wheel baths are much more efficient means of wheel cleaning for developments of this size. They do not need to be staffed and the water can be filtered and reused.

x. details of petrol and oil interceptors to be provided; Section 2.2.4 of the CEMPMS states that no petrol/oil interceptors are required for this S278 phase, the SuDS basin to the north will provide treatment. Please ensure with our LLFA and Environmental colleagues whether this is acceptable.

xi. a method statement for the control of noise, vibrations and air pollution, including pile driving (in accordance with BS: 5228), dust, smoke, fumes and debris during construction; Please refer to our Environmental colleagues.

xii. a Construction Workers' Travel Plan; The CWTP is 3 paragraphs at section 2.3.2 that amounts to a statement to encourage workers to vehicle share or use public transport. There is no mention of cycling provision and no mention of a guaranteed lift home in the event of an emergency. The information submitted is not sufficient to comply with this part of the condition.

xiii. a Traffic Management Plan to control traffic during the construction phases; No details appear to have been submitted to comply with this part of the condition.

xiv. details to maintain access to the adjacent site/land. No details appear to have been submitted to comply with this part of the condition.

xv. strategy outlining the hours for construction works and delivery including the waiting of vehicles undertaking deliveries and collections during the construction phases. The strategy shall also identify measures to ensure ongoing engagement with the local community. The standard hours of construction works and delivery are;
o 0730 to 1830 Monday to Friday;
o 0830 to 1300 Saturdays; and
o Not at all on Sundays, Bank Holidays and Public Holidays. The CEMPMS states these operating hours, but also states that deliveries arriving before 07:30 would be allowed on site to avoid idling on the public highway to reduce congestion. Whilst the latter is welcomed, this would be considered in breach of the operational hours of the site. Deliveries should be scheduled for a time when the site is ready to accept deliveries, for example, site opens at 07:30, deliveries begin at 08:00 once the gates person and wheel wash operator are in position. No details appear to have been included in relation to engagement with the local community. The information submitted is insufficient to comply with this part of the condition.
Reason: To reduce the potential impact on the public highway and residential amenity during the site preparation and construction phase(s) of development.

Condition 37: Construction and Environmental Management Plan

Prior to the commencement of works of any development on any sub-phase hereby permitted, including site clearance, a Construction and Environmental Management Plan for that sub-phase of development shall be submitted to and approved in writing by the Local Planning Authority. Once agreed, such mitigation measures approved prior to the commencement of construction shall be implemented prior to the commencement of any construction on that sub-phase and shall be adhered to throughout the construction period of that sub-phase. The Construction and Environmental Management Plan shall provide:
i. measures for the treatment of environmentally sensitive areas and how the environment will be protected during the construction works to include:
a) site walkover survey by a suitably experienced Ecological Clerk of Works to ensure that the status of the Site for habitats and species has not significantly altered since planning consent;
b) The measures to be used during the construction works in order to minimise and reduce the environmental impact of the works (considering both potential disturbance and pollution);
c) A map or plan showing habitat areas to be specifically protected (identified in the ecological report) during the works;

d) Any necessary mitigation for protected species;
ii. a scheme for recycling/disposing of any waste resulting from construction works;
iii. proposals for the transport of waste created during the development process and subsequent use of the site;
iv. Any pollution, hazardous materials and contamination protection methods; and,
v. Details of the persons/ bodies responsible for particular activities to be controlled by the CEMP including to demonstrate suitably qualified for the activity they are undertaking or supervising (e.g. Ecological Clerk of Works).
Reason: To reduce the potential impact on the public highway and ensure the protection of the environment during the site preparation and construction phase(s) of development.

Only part iii of this condition falls within highway remit, no highway comments are made on the other parts of the condition.
Part iii: No specific information is given to address this element, only that waste will be removed from site is skips. There is no detail on whether this will create trips in addition to the number of vehicles specified earlier in the CEMPMS, or whether the skip trips are already included. Wherever possible, back hauling should be used to minimise trips.

Condition 13: Tree Protection

No highway comments are made.

Condition 17: Bats

No highway comments are made.

Condition 53: Slab Levels

Notwithstanding any plans to the contrary, and prior to the commencement of the development of each sub-phase, the full details of the existing and proposed site levels, together with the finished floor slab levels of any buildings (including roads, bridges, footpaths and other structures) for that sub-phase shall be submitted to and approved in writing by the Local Planning Authority. Development shall be carried out in accordance with the approved details.
Reason: To ensure that the finished floor slab levels details and heights of development are satisfactory.

Proposed site levels for Thornhill Road Junction have been included on the 'Drainage' drawing (1335/HL/58/500 Rev C) and are broadly acceptable. This acceptance does not absolve the developer of their responsibility to enter into a S278 Agreement with the Local Highway Authority. As works cannot commence on the public highway until Technical Approval has been issued, the Agreement has been signed & sealed and a Road Space Permit issued, the developer is encouraged to make contact with HighwayAgreements@swindon.gov.uk Streetworks@swindon.gov.uk and NetworkCoordination@swindon.gov.uk Particularly as the planned start date is the 4th July 2022. NB, a minimum 12 weeks' notice is required for the Road Space Permit.

Condition 54: Materials

No highway comments are made.

Please note that the comments made here represent Officer opinion and cannot be seen to prejudice Swindon Borough Council's formal determination in relation to any application or planning matter.

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